

25NWCV03420 25NWCV03420

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Case Number: 25NWCV03420 Hearing Date: August 25, 2026 Dept: P

L BERNARD MEGGS v. RICHARD A. ELIAS, ET
AL.

CASE NO.: 25NWCV03420

HEARING: 08/25/2026 @ 9:30 AM

#12

TENTATIVE ORDER

I.

Defendants Richard A. Elias, Bryan Yeats,
and OnGuard Property Management's demurrer to the second and fifth causes of
action in the first amended complaint is SUSTAINED with 30 days LEAVE TO AMEND.

II.

Defendants' motion to strike is MOOT in
part and GRANTED in part.

Moving party to give notice.

Defendants Richard A. Elias, Bryan Yeats, and OnGuard
Property Management (Defendants) demur to the second and fifth causes of action
in the first amended complaint (FAC) and move to strike portions of the FAC.

Background

On September 29, 2025, Plaintiff L Bernard Meggs, an individual, dba Civil Litigation Group, LTD. (Plaintiff) filed this civil rights action against Defendants Richard A. Elias (Landlord or Elias), Elias Building, Bryan Yeats (Yeats), OnGuard Property Management, and Does 1 through 50. On January 29, 2026, Plaintiff filed the operative FAC against Defendants Richard A. Elias, Elias Building, Elias Building, LLC, Bryan Yeats, OnGuard Property Management, and Does 1 through 50.

The FAC alleges the following: Plaintiff was a commercial tenant at Suites 2 and 6 at the commercial property located at 6736 Greenleaf Avenue, Whittier, California (Subject Property) owned by Elias. (FAC, ¶¶ 1-2.) The FAC alleges that beginning in February of 2024, Defendants engaged in “a continuing course of discriminatory, harassing, retaliatory, and coercive conduct” against Plaintiff designed to pressure Plaintiff to vacate Suite 6 so it could be re-leased at a higher rate to a different tenant. (FAC, ¶¶ 10-11.) The FAC asserts five causes of action: (1) Discrimination (Unruh Civil Rights Act); (2) Harassment (Commercial Tenant Protection); (3) Breach of Covenant of Quiet Enjoyment; (4) Constructive Eviction / Business Enjoyment; and (5) Intentional Infliction of Emotional Distress.

On May 5, 2026, Plaintiff filed Requests for Defaults as to Elias Building and Elias Building, LLC and their Default was entered on the same date.

Legal Standard

Demurrer Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts

sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

Code of Civil Procedure

section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (A.J. Fistes v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695; Khoury v. Maly's of California (1993) 14 Cal.App.4th 612, 616.)

“Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A “[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Ibid.)

Motion to Strike Standard

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer (i.e., words, phrases, prayer for damages, etc.). (Code Civ. Proc., §§ 435-437.) A motion to strike lies only where the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc., § 437.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) “The means by which the demurring party met and conferred...and that the parties did not reach an agreement” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties have adequately met and conferred. (Sabater Decl., ¶¶ 7-8.)

Discussion

Defendants demur to the second and fifth causes of action on the grounds that the FAC fails to state facts sufficient to constitute the causes of action, Defendants additionally demur to the second cause of action based on uncertainty.

Second

Cause of Action – Harassment (Civ. Code, ¶ 1940.2; SB 1103)

Civil Code section 1940.2 makes certain conduct unlawful “for a landlord to do...for the purpose of influencing a tenant to vacate a dwelling.” The prohibited conduct includes certain Penal Code violations and “[u]se, or threaten to use, force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant’s quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person.” (Civ. Code, § 1940.2, subd. (a)(1)-(3).)

Defendants first argue that Plaintiff’s claim for harassment under Civil Code section 1940.2 is improper because Civil Code section 1940.2 applies to residential properties, and the Subject Property is a commercial property. (FAC, ¶¶ 1-2.) Plaintiff concedes that this was an improper statute but argues that it is not the only basis for the violation. (See Opp., 6:25-7:1-2 [“Plaintiff does not dispute that section 1940.2, by its terms, addresses conduct directed toward a tenant of a dwelling. The issue, however, is whether that statutory reference requires dismissal of the factual claim as pleaded.”].)

SB 1103 amends Civil Code sections 827, 1632, and 1946.1 and adds Civil Code section 1950.9. (Sen. Bill No. 1103 (2024).) Defendants demur on the grounds that the FAC merely alleges that Defendants violated SB 1103 without reference to any specific Code sections or factual specifics on the statutes Defendants violated.

In opposition, Plaintiff argues that it properly alleges an ongoing claim for harassment. “Defendants engaged in commercial tenant harassment, including threats, intimidation, hostile confrontations during

business hours, retaliatory conduct following Plaintiff's repair requests, and efforts to force Plaintiff to vacate without lawful process, in violation of Civil Code § 1940.2 and SB 1103 (Commercial Tenant Protection Act of 2025)." (FAC, ¶ 20.)

Here, the Court agrees that the harassment claim is uncertain. While the Court agrees with Plaintiff that alleging the wrong statutory basis does not negate the factual allegations; here, with one statutory basis invalidated as inapplicable and the other covering multiple statutes, the Court is unable to discern upon which statute to assess whether Plaintiff states a cause of action. As such, the Court finds Defendants' argument that they are unable to discern what specific Code sections they are in violation of meritorious. Given that the FAC asserts a statutory basis for the harassment claim, the Court does not ignore the statutory bases for purposes of demurrer.

Accordingly, Defendants demurrer to the second cause of action in the FAC is SUSTAINED with 30 days LEAVE TO AMEND.

Fifth

Cause of Action – Intentional Infliction of Emotional Distress

"The elements of the tort of intentional infliction of emotional distress are: " "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct...."" Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903; Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009.)

The FAC alleges that based on Defendants harassing and discriminatory conduct against Plaintiff, "Defendants engaged in extreme and outrageous conduct with intent to cause, or reckless disregard of the probability of causing, severe emotional distress to Plaintiff." (FAC, ¶ 29.) Additionally, "Plaintiff suffered emotional distress, humiliation, and harm as a direct result." (FAC, ¶ 30.)

Defendants demur on the grounds that the conduct does not rise to the threshold necessary to state a claim. Defendants further argue that the facts lack details such as the timeframe of the conduct.

In opposition, Plaintiff argues that the facts taken together allege the necessary extreme and outrageous conduct.

The Court finds that the FAC alleges insufficient facts to state a claim for intentional infliction of emotional distress. The Court finds Defendants' arguments that more facts are needed well-taken. "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 [noting failure to plead facts demonstrating the nature, extent or duration of alleged emotional distress].) Moreover, Plaintiff's arguments that the FAC alleges that Defendants acted deliberately or maliciously do not cure the insufficiency. "In evaluating whether the defendant's conduct was outrageous, it is 'not enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that his conduct has been characterized by 'malice,' or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.'" (Cochran v. Cochran (1998) 65 Cal.App.4th 488, 496.)

Accordingly, Defendants' demurrer to the fifth cause of action is SUSTAINED with 30 days LEAVE TO AMEND.

Motion to Strike

Defendants move to strike the following portions of the FAC seeking punitive damages:

1. Page 3, Number 15: "Defendants' conduct was willful, malicious, oppressive, and carried out with conscious disregard of Plaintiff's rights, including statutory commercial tenant protections, thereby supporting an award of punitive damages pursuant to Civil Code § 3294, as alleged herein as a remedy."

2. Page 4, Number 18: "Defendants' discriminatory conduct was intentional, malicious, and oppressive and caused Plaintiff humiliation, emotional distress, reputational harm, and economic

loss.”

3. Page 4, Number 21: “Defendants’

conduct was part of a deliberate campaign designed to interfere with Plaintiff’s lawful occupancy and business operations and was undertaken with malice and conscious disregard of Plaintiff’s rights.”

4. Page 5, Number 31: “As to all

causes of action where permitted by law, Plaintiff seeks punitive and exemplary damages because Defendants’ conduct was carried out with malice, oppression, and fraud, including a conscious and deliberate disregard of Plaintiff’s statutory and contractual rights, in order to punish Defendants and deter similar misconduct.”

5. Page 5, Prayer for Relief,

Number 6: “Punitive and exemplary damages pursuant to Civil Code § 3294

Pursuant to the Court’s ruling on the demurrer, the motion to strike is MOOT as to Page 4, Number 21.

Defendants move to strike the remaining portions of the FAC on the grounds that the FAC fails to state facts with the requisite particularity to support a claim for punitive damages.

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) “Malice” refers to conduct “intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person’s rights. (Civ. Code, § 3294, subd. (c)(2).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) The basis for punitive damages must be pled with specificity; conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10

Cal.App.4th 1033, 1042.) To allege a 'conscious disregard' of a plaintiff's rights as opposed to an actual intent to harm, Civil Code section 3294 imposes additional requirements of 'despicable' and 'willful' conduct. (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 713.) "As amended to include this word [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (Id. at p. 725, citations omitted.)

Additionally, "[a]n employer shall not be liable for damages...based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

Here, the Court agrees that the FAC does not plead facts to support punitive damages with the requisite particularity. The FAC alleges "Defendants embarked on a deliberate campaign of threats, intimidation, hostile communications, and interference with Plaintiff's business operations designed to pressure Plaintiff to vacate Suite 6 so it could be re-leased to another tenant at a higher rent. Defendants' agents expressly told Plaintiff to 'MOVE OUT NOW,' and confirmed Defendants' intent to terminate Plaintiff's tenancy for this purpose." (FAC, ¶ 11.) Additionally, Defendants' conduct included, but was not limited to: (a) coercing Plaintiff to relinquish legal rights; (b) making discriminatory and derogatory remarks concerning Plaintiffs race and ethnicity to Plaintiff and other tenants; (c) imposing different and more burdensome lease and operating terms than those applied to similarly situated tenants; (d) retaliating against Plaintiff for exercising lawful rights; and (e) threatening or serving improper and defective notices of termination without lawful justification." (FAC, ¶ 12.)

As argued by Defendants, without additional facts describing instances of the alleged hostilities or the timeline, there are insufficient facts to show despicable conduct. Moreover, the FAC does not allege facts to support punitive damages claims against the corporate defendants. (See Civ.

Code, § 3294, subd. (b).)

Accordingly, Defendant's motion to strike is GRANTED as to Page 3, Number 15; Page 4, Number 18; Page 5, Number 31; and Page 5, Prayer for Relief, Number 6.